

The Claremont City Council held a meeting on Wednesday, June 27, 2018, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Absent:

At-Large Councilor Jeremy Zullo

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

Mayor Lovett said Item F. Resolution 2018-37 Establishment of Non-Capital Reserve for Traffic Signals – Public Hearing was moved to the July 11 meeting. She said this has to go to the Finance Committee.

MAYOR’S NOTES

Mayor Lovett –

- Annie E. Casey Foundation’s Kids Count report ranks New Hampshire first overall and second in economic well-being.
- Claremont, NH, has been ranked the 9th safest city to raise a child.
 - o Mr. McNutt said that report came from Safewise out of Salt Lake City, Utah. He read an excerpt, “Situated on the banks of the Sugar and Connecticut Rivers, Claremont is an outdoor enthusiast’s paradise. There are plenty of hiking trails and parks for free-range children to explore—but we urge parents to keep water safety front and center with such easy access to the town’s flowing rivers.”

At 6:34 p.m. Mr. Koloski arrived.

- o Mr. McNutt continued talking about Safewise. Claremont’s overall safety score is 88.49%.

- Mayor Lovett – Friday, in Concord, there will be a roundtable discussion regarding energy issues.
- July 4th is next Wednesday.
 - Mr. McNutt said the 4th of July celebration will start at 6 p.m. at Monadnock Park. The band, Last Kid Picked, will play. Fireworks will start at 9:30 p.m. The fireworks are being presented due to a generous donation by McGee Toyota in Claremont. Parks & Recreation will be asking for a \$1 donation at the entrance to go toward next year's fireworks. Rain date will be July 5th.

CITIZEN'S FORUM

John Simonds, Ward 3, gave an update from the Santagate Bridge Signage (Ad Hoc) Committee. He said they have been working with the Historic District Commission (HDC), Council and public. They will come back to the Council in July.

David Casciani has lived in Claremont since 2009. About a month and a half ago, a Claremont webpage asked people to say something positive about Claremont, so he shared his story about why he loves Claremont. He works on an organic farm. The people of Claremont are generous, kind and hardworking. There is an almost perfect balance of country and city living here. Sullivan County is an agriculturally rich county. Claremont produces about 24 million pounds of milk each year. There are orchards to the north, Bascom Maple Farms produced 40,000 gallons of maple syrup last year. He talked about the beautiful rivers, streams, and the city center with all its unique restaurants and shops (including the spice shop). He loves Claremont and for the City to continue to improve, people need to appreciate the little things and to see the beauty that Claremont has.

NEW BUSINESS

Refuse Tax Deed

The City Clerk is requesting to not tax deed the following properties:

159-56-17	8 Upham Pl*
57-21-32	34 Madison Pl*
119-354	39 Central Street**
128-9	33-35 Chapel Grove Pl*
159-56-13	35 Upham Pl (recently deceased – seeking next of kin)
129-141-12	5 Dennison Ave*
73-1	Winter St**
131-30	Mulberry St**
131-29	101 Mulberry St**

*** Has a payment plan**

**** Potential Hazardous Site**

Mayor Lovett had background information regarding the law for tax deeds to the Council. Council can refuse to tax deed the properties and penalties and interest continue to accrue. If the situation changes, the properties can be brought back to the Council to reconsider. If the Council accepts the tax deed on inhabited property, then the City becomes the landlord.

Mr. Koloski said he has a conflict of interest with one of the parcels and he asked to recuse himself. He stepped down from the Council table.

Gwen Melcher, City Clerk, said that 8 Upham Place, 34 Madison Place and 5 Dennison Avenue are mobile homes. The owner of 35 Upham recently passed away and the City is seeking the next of kin. The owner of 33-35 Chapel Grove is on a payment plan and it will be paid off in a couple of weeks. 39 Central Street is a vacant building; Nancy Merrill, Planning and Development Director, is doing research on it and on Winter Street. 39 Central is a documented hazard site. Winter Street is a potentially hazard site; the City is looking for more information. Mulberry Street properties are potentially hazardous sites and they are being worked on.

Ms. Merrill said it will be a couple of weeks before we have more information regarding Winter Street. It is vacant land. There used to be a building on it and she is checking with NH DES (Department of Environmental Services) on this. It is believed that there was a recycling machinery business there at one time, but we do not have a firm answer, yet. She thinks the building was removed in the 1980s.

Mayor Lovett said she did some research on the NH DES website regarding 39 Central Avenue. She asked why the building hadn't been razed. She said \$141,000 is owed in back taxes. She doesn't see a compelling reason to refuse the tax deed.

Ms. Merrill said the City was only going to raze the wooden section (which it has done), but not the brick section. She talked about the oil spill. This is not a brownfield site.

Regarding safety concerns, Police Chief Mark Chase said the brick structure has been sealed up pretty well, however there are squatting problems at times.

Mayor Lovett asked what would be the concern if the City took the building instead of refusing the tax deed. Mr. McNutt said it is not clear what the liability will be. He suggested putting this off right now. Even if the City took the property, we don't have the resources to deal with it right now.

Ms. Merrill said the HDC weighed in on the discussion to take down the building. Their recommendation was to take the wooden addition off the back. They want to keep the original brick part. It was discussed to mothball it until someone decides what to do with it. The City doesn't know where the owner is and hasn't for 4-5 years.

Mr. Damren suggested following up on this in July and getting something from the HDC as well. Ms. Merrill suggested contacting Geoinisight for their input. Council concurred. Mayor Lovett

asked Mr. Pope to take this to the HDC. Mr. Stone suggested taking the property, razing the building and moving on. Mayor Lovett asked Mr. Pope that when he spoke with the HDC to find out what the value of this building is. Mr. Pope said there would not be enough time to place this on tomorrow's HDC agenda, but it could go on the next meeting.

Mayor Lovett said regarding the Topstone building (101 Mulberry Street) that DES One Stop has a 505-page report on it.

Ms. Merrill said a recent report was just finished on the site. There have been groundwater monitoring wells on the property for many years. There may be a new source of contamination coming from offsite. DES has been requested to do a couple of monitoring wells in the road to help pinpoint what the source is. She said the owners have been cooperative.

Mayor Lovett pointed out the back taxes are significant. If the City takes the property, the City becomes responsible for the cleanup until it is resolved.

Mr. McNutt said this is a tri-partnership. The managing partner's health has become an issue and now the other two partners have stepped in. It is highly likely they will enter into a payment plan with the City. The owners are working to correct the problems.

Mayor Lovett said City Administration has requested there be no second meeting in July, so the next Council meeting would be August 8.

A motion was made by Mr. Damren and seconded by Ms. Kier that the City Council, having reviewed the list of impending tax deed parcels as presented by the City's Tax Collector, hereby notifies the Tax Collector that she shall not execute a deed of the real estate to the City for the following parcels because the Council has determined in its judgment that acceptance would subject the City to undesirable obligations or liability risks, including the potential liability as an owner of property under state and federal law, which imposes strict liability on owners for environmental impairment of the real estate involved:

159-56-17	8 Upham Pl*
57-21-32	34 Madison Pl*
128-9	33-35 Chapel Grove Pl*
159-56-13	35 Upham Pl (recently deceased – seeking next of kin)
129-141-12	5 Dennison Ave*
131-30	Mulberry St**
131-29	101 Mulberry St**

*** Has a payment plan**

**** Potential Hazardous Site**

The City Council further authorizes the Tax Collector or other City official to enforce all such tax liens upon the above-listed properties, as provided by RSA 80:50 and through any other remedy provided by law.

Voice vote: motion carried 6-1 with Mr. Stone voting no.

Mr. Damren made a follow-up motion that 39 Central Street, map 119-354, and Winter Street, map 73-1, be removed from the Refuse Tax Deed list and be brought back to Council with proposed action at the first meeting in August. Seconded by Ms. Kier.

Voice vote: motion carried 7-0.

A motion was made by Mr. Stone and seconded by Mr. O’Hearne to remove map 131-30, Mulberry Street, and map 131-29, 101 Mulberry Street, from the Refuse Tax Deed list.

After discussion where Mr. Pope talked about the cleanup the City had to pay for from the “gift” of the Sawtooth building and Mr. McNutt said we have a responsible party working with the City and state on the Mulberry property and if it looks like the City might take the property, they may walk away, **Mr. Stone withdrew his motion and Mr. O’Hearne withdrew his second.**

At 7:31 p.m., Mr. Koloski returned to the Council table.

Planning and Development Presentation

Ms. Merrill showed a PowerPoint presentation on Economic Development 2017-2018. She covered employment; unemployment; largest employers (including Claremont School District, Valley Regional Hospital, Walmart, National Field Reps, CANAM Group, Red River Computer, City of Claremont, NH Industries, Claremont Savings Bank, and Crown Point Cabinetry); and Sullivan County rental cost trends. Regarding the Junior Sports League Building, over the last couple of years, she has met with the SAU and the County (regional dispatch); it has been discussed for City storage; it will go out for bid in July. She discussed projects including the Claremont Dental Center Expansion Project and 56 Opera House Square Project. She talked about Youtube videos: CityOfClaremontNH “Fulling Mill & Claremont: Choosing a Home,” “Made in Claremont,” and Claremont MakerSpace “What Will I Make – What About You?” She listed 2016-2017 Major Projects completed (NH Industries, North Country Smokehouse, National Field Representatives, Ford Dealership, Hobby Lobby, Claremont MakerSpace, Red River Expansion, Harbor Freight, Scoop City and VIP). Other topics coming to Council in the future are housing, expanding RSA 79-E from Historic District to City Center to encompass more homes, food trucks, lot merger of Map 120, Lot 140 to Monadnock Park and Santagate Bridge.

Mr. Pope asked about looking at electric suppliers, other than Eversource, to see if we could get better rates for the community.

Mr. Stone asked if there is any hazardous material in the JSL building. Ms. Merrill said it has the original furnace with some asbestos. Mr. McNutt asked about lead from the indoor firing range. Ms. Merrill said yes. She said the structure of the building is sound. The furnace has a carbon monoxide issue.

Mr. Koloski would like a Council tour of the JSL.

Ms. Merrill said the City bought the Old Pleasant Restaurant from the Small Business Administration about 25 years ago.

Mr. McNutt said the City is working with the original drafter of RSA 79-E to try to expand the legislation to applicable homeowners. 79-E would encourage folks to invest in their properties without the immediate tax burden of the renovation.

Mr. Koloski gave praise to work done by Ms. Merrill's office, however, he said the phone system at the Planning and Development Department is hard to navigate. Ms. Merrill said she would take a look into it.

Mr. Koloski, in regard to food trucks, asked if there could be City parcels identified for food truck use.

Mr. McNutt talked about the potential of having a power drop located at the airport which would allow food trucks and food truck festivals to set up there.

Mayor Lovett asked about mentioning the school district in the City's marketing. Ms. Merrill said she has talked to the school about putting information into the e-newsletter which they have done a couple of times..

Mr. Pope asked if the public information officer position would be tied in to economic development. Mayor Lovett said that will be on the August 9 Council/School Board joint meeting agenda to discuss what monies and manhours need to be allocated. Ms. Merrill said some of those responsibilities already exist in some their job descriptions.

Mr. Koloski talked about food trucks and that other communities offer spaces by lottery. He would like it to be an agenda item. Mayor Lovett said the Administration would have to look at it for potential locations. This will have to be a future agenda item. Ms. Merrill said most communities that allow food trucks on public property charge fees.

Mayor Lovett asked to move up the Fish and Game Grant.

Accept and Expend \$2,700 NH Fish and Game Grant for Trail Enforcement

Chief Chase said this Fish and Game grant is to allow extra patrols to monitor the trails April-October. The grant is for \$2,700.

A motion was made by Mr. O’Hearne and seconded by Mr. Stone to authorize the City Manager, or his designees, to accept a grant in the amount of two thousand, seven hundred dollars (\$2,700.00) and to enter into an agreement with the State of New Hampshire Fish and Game Department for the purpose of Off Highway Recreational Vehicle enforcement by the Claremont Police Department.

Voice vote: motion carried 8-0.

Chief Chase will put the benefits of this grant in his monthly report.

Apply for U.S. Department of Transportation BUILD (Better Utilizing Investments to Leverage Development) Grant

Ms. Merrill said this replaces what was the TIGER Program. This is for the Charlestown Road drainage, sidewalks, road reconstruction, intersection of Grissom Lane and Charlestown Road improvement, and the roadway up to the railroad tracks. This motion is to allow the City to apply for the grant. For rural projects under BUILD, there is no match. This is highly competitive.

Mayor Lovett asked if this BUILD Grant would be better suited to issues on Washington Street. Ms. Merrill said she met with Public Works Director Scott Sweet on this. The Charlestown Road project has been identified in the Master Plan. Drainage in the area is a problem. This is a major truck route. There are no sidewalks in the area.

A motion was made by Mr. Koloski and seconded by Mr. Stone to authorize the City Manager or his designee to execute and perform all actions as may be required on behalf of the City of Claremont to apply for a Better Utilizing Investments to Leverage Development (BUILD) transportation grant from the U.S. Department of Transportation, said funds to be used for the Charlestown Road Safety & Transportation Project.

Voice vote: motion carried 8-0.

Apply for NH Department of Transportation TAP (Transportation Alternative Program) Grant

Ms. Merrill said the Regional Planning Commissions put together the recommendations for the state’s 10-year transportation plan and Charlestown Road and Main Street are the two projects that Public Works has had on its list for some time. We are currently using the TAP grant for sidewalk on East Street and the first section of the Rail Trail. This would be a new application. The North & Main Project goes to Citizens Street bridge and the work on Main Street goes to Union Street. This grant would cover the section in between those two projects.

A motion was made by Ms. Kier and seconded by Mr. Koloski to authorize the City Manager or his designee to execute and perform all actions as may be required on behalf of the City of Claremont to apply for a Transportation Alternative Program grant from the

N.H. Department of Transportation, said funds to be used for Main Street sidewalk improvements and construction from the intersection of Elm and Main Streets to the Citizens Street Bridge.

Ms. Merrill said this has a 20% match. If we are successful, this will come back to Council to accept and expend. The maximum is \$1 million.

Voice vote: motion carried 8-0.

Transfer Funds to Voter Equipment Capital Reserve – Public Hearing

Mr. McNutt said in the budget for this year, there was one City election and next year there will be two elections. It is always an estimate of what elections cost. Currently there is \$252 in the account. This will add \$850.

A motion was made by Ms. Lessard and seconded by Mr. Stone that

WHEREAS in June of 2017 the City Council established a Voter Equipment Capital Reserve Fund (the Fund) using already appropriated funds to begin saving for the future replacement of voter equipment and;

WHEREAS the City of Claremont has unexpended funds remaining in the FY 2018 Election budget;

The Claremont City Council hereby authorizes the transfer of \$850.00 to be transferred to the Fund and hereby authorizes the City Manager or his designees to execute all documents and undertake all actions as may be required to implement this Motion.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Voice vote: motion carried 8-0.

Resolution 2018-37 Establishment of Non-Capital Reserve for Traffic Signals – Public Hearing

Moved to July 11 meeting.

City Fee Schedule – Public Hearing

Mr. Damren said the Finance Committee has been reviewing the City Fee Schedule. Using the proposed City Fee Schedule from the May 9th Council meeting, he said the Finance Committee proposed the Council approve the following fee schedules: All Departments, Assessing, Cemetery Fees, City Manager's Office, Communications-911, Finance Department, Management Information Systems (MIS), Police Department, Public Works Department, and Welfare Department. The Committee has requested information from the departments that were kept off the list. They expect the rest of the process will take through the end of the year for completion.

Mayor Lovett said the change to Public Works is for the Transfer Station only.

Mr. Koloski asked if a fee could be charged to the owner of the “yellow box” that had to be retrieved from the river. Mr. McNutt will look into it.

There was a question about an item on the front of the proposed City Fee Schedule dated June 27, 2018, “Note: All fees may not be covered in this schedule as some are dictated by state law.” Mr. Damren said that would be part of the next review.

Mr. Stone said the timeframe for the Police Department Pistol Permits had changed in 2017 to 5 years instead of 4.

Under Health Department, Mr. Koloski asked if Mobile Food Processors (per vehicle) could be changed to food cart or food truck.

A motion was made by Mr. Damren and seconded by Ms. Kier to adopt the City Fee Schedule for All Departments, Assessing, Cemetery Fees, City Manager’s Office, Communication-911, Finance Department, Management Information Systems (MIS), Police Department, Public Works Department (Transfer Station only), and Welfare Department. Use the Fee Schedule that was included in the May 9, 2018, Council packet.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Voice vote: motion carried 8-0.

Approve Multi-Year Contract with Utility Partners for Treatment Plants

Victor St. Pierre, Public Works Assistant Director, said that Utility Partners has operated the Wastewater and Water Treatment Plants since 2013. They are well trained licensees that keep current with new rules. The request for proposal was put out to bid to 13 companies. The request was for one company to operate both plants. Only one proposal was received and it was from Utility Partners. The price has come down slightly. The City removed the electric costs because the solar array is being installed. The contract is for five years. Five employees run both plants.

There was a discussion about the length of the contract. Mr. St. Pierre said employees want to know their job is secure for a certain length of time. Mr. McNutt said other states offer 10 and 20-year contracts.

A motion was made by Mr. Pope and seconded by Ms. Kier to authorize the City Manager to enter into a multi-year agreement with Utility Partners, LLC, for a five (5) year term to operate, maintain and repair the City’s water and wastewater treatment facilities in the base monthly amount of \$66,510.75 (\$21,007.67 for water and \$45,503.08 for wastewater), said amounts having been raised and appropriated in the 2019 fiscal year budget for the

water and sewer departments. The proposed lease agreement shall contain a termination clause in the event of non-appropriation of sufficient funds for any subsequent year of the lease.

Roll call vote:

Lessard - yes

O’Hearne - no

Stone - no

Damren - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett – yes

Motion carried 6-2 with Messrs. O’Hearne and Stone voting no.

FUTURE AGENDA ITEMS AND DIRECTIVES

Council agreed there would not be a second meeting in July. A joint meeting of the Council and School Board is scheduled for August 9.

Mr. Koloski asked if something can be done about the spray-painted jersey barriers and overgrown brush at the boat landing.

Mayor Lovett said to add Santagate Bridge Signage update to the July 11 agenda.

Mr. Koloski asked about creating an ordinance so that shopping carts cannot be wheeled from the parking lot that they belong to. Mayor Lovett said she will review the preliminary research she did on this.

Mr. Koloski praised the station host volunteers at the Amtrak station.

CONSULTATION WITH LEGAL COUNSEL

None

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(d) – REAL ESTATE

A motion was made by Mr. Damren and seconded by Mr. Stone to go into the Non-Public Session pursuant to RSA 91-A:3,II(d) – Real Estate and to invite Mr. McNutt and Ms. Russell into the session.

Roll call vote:

Lessard - yes

O’Hearne - yes

Stone - yes

Damren - yes
Kier - yes
Koloski - yes
Pope - yes
Lovett – yes
Motion carried 8-0.

Mr. McNutt talked about the approximately 7.5 acres of City-owned land that is in the middle of Edward MacGlaflin's farm and the land that is owned by Mr. MacGlaflin that the City would like to take possession of to be used for a river walk. Mr. MacGlaflin agreed to give the City the land for the river walk in exchange for a quitclaim deed for the approximately 7.5 acres.

Mr. Koloski said he was not comfortable making a decision tonight, because the Conservation Commission had discussed this and there is erosion along the river bank. That conversation has been going on for a long time. He would like to see a vote from the Parks and Recreation Commission on what they want.

At 9:40 p.m., a motion was made by Mr. Pope and seconded by Mr. Damren to exit the Non-Public Session.

Roll call vote:
Lessard - yes
O'Hearne - yes
Stone - yes
Damren - yes
Kier - yes
Koloski - yes
Pope - yes
Lovett – yes
Motion carried 8-0.

A motion was made by Mr. Damren and seconded by Ms. Kier that the Council approve the Quitclaim Deed sent on June 8, 2018, to transfer the approximately 7.5 acres (known as Fisher's Island) to Edward MacGlaflin.

Roll call vote:
Lessard - yes
O'Hearne - no
Stone - yes
Damren - yes
Kier - yes
Koloski - no
Pope - yes
Lovett – yes
Motion carried 6-2 with Messrs. O'Hearne and Koloski voting no.

ADJOURNMENT

At 9:44 p.m., a motion was made by Ms. Kier and seconded by Mr. O’Hearne to adjourn.

Voice vote: motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council